

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X

TERRELL COLEMAN,

Plaintiff,

**SUMMONS TO THE
VERIFIED COMPLAINT**

-against-

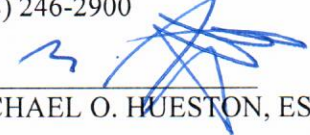
THE CITY OF NEW YORK; P.O. MICHAEL MURPHY,
TAX # 955241; and P.O. JOHN DOE, the individual
defendant(s) sued individually and in their official capacities,**Index:**Basis of Venue: occurrence of
incident – 168-10 127th Avenue,
Jamaica, New York

Defendants.

----- X

To the above named defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty days after service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: Brooklyn, New York
December 14, 2016MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiff
16 Court Street, Suite 3301
Brooklyn, New York 11241
(718) 246-2900By: 

MICHAEL O. HUESTON, ESQ.

Defendants' addresses: THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007; and
P.O. MICHAEL MURPHY, TAX # 955241; and P.O. JOHN DOE, Patrol Borough Queens South –107th
Precinct 71-01 Parsons Blvd., Flushing, NY 11365

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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TERRELL COLEMAN,

Plaintiff, **VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK; P.O. MICHAEL MURPHY,
TAX # 955241; and P.O. JOHN DOE, the individual
defendant(s) sued individually and in their official capacities,

Defendants.

Index:

Basis of Venue: occurrence of
incident – 168-10 127th Avenue,
Jamaica, New York

-----X **Jury Trial Demanded**

Plaintiff Terrell Coleman, by and through his counsel, Michael O. Hueston, Esq.
and Richard H. Rosenberg, Esq., upon information and belief, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action in which plaintiff seeks relief for the violation of plaintiff's rights secured by 42 U.S.C. § 1983; and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution; and the laws of the State of New York. Plaintiff's claims arise from an incident that arose on or about September 22, 2015. During the incident, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things: unlawful search and seizure; false arrest; assault; battery; unreasonable force; failure to intervene; conspiracy; malicious prosecution; denial of a fair trial/fabricated evidence; implementation and continuation of an unlawful municipal policy, practice, and custom; and respondeat superior liability. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's

fees, pursuant 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Within 90 days of the incident alleged in this complaint, plaintiff served upon defendant City of New York a Notice of Claim setting forth the name and post office address of plaintiff, the nature of the claims, the time when, the place where and the manner in which the claims arose, and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiff's demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

4. Plaintiff has satisfied all conditions precedent for the filing of this action, including appearing at a 50-hearing. This action is being commenced within one year and ninety days of the date of the occurrence herein.

5. Venue is proper in the Supreme Court of the State New York, Queens County, because the acts in question occurred in the State of New York, Queens County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, Queens County; and jurisdiction is proper because the Supreme Court of the State New York, Queens County has jurisdiction over plaintiff's state law causes of actions, and plaintiff's federal causes of action pursuant to 42 U.S.C. § 1983.

PARTIES

6. Plaintiff is a resident of the State of New York, living at 168-10 127th Avenue, Apt. # 4G, Jamaica, New York.

7. At all times herein, defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

8. At all times relevant, defendant City of New York maintained a police department known as the NYPD, which employed the individual defendants.

9. At all times alleged herein, defendants P.O. Michael Murphy, Tax # 955241, and P.O. John Doe were employed as police officers with Patrol Borough Queens South, located in Queens County, New York, or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

10. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

The Incident

11. On September 22, 2015, at and in the vicinity of 168-10 127th Avenue, Apt. # 4G, Jamaica, New York, several police officers operating from Patrol Borough Queens South, located in Queens County, New York, including upon information and belief, the individual defendants P.O. Michael Murphy, Tax # 955241, and P.O. John Doe ("the police"), at times acting in concert and at times acting independently, committed the following illegal acts against plaintiff.

12. On September 22, 2015 at approximately 1:40 a.m., at and in the vicinity of 168-10 127th Avenue, Apt. # 4G, Jamaica, New York, the police without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff (or any third person) had committed a crime unlawfully arrested plaintiff.

13. The police acted in concert in committing the above-described illegal acts against plaintiff.

14. The police unlawfully entered 168-10 127th Avenue, Apt. # 4G, Jamaica, New York ("the apartment").

15. Upon information and belief, the police did not have a warrant to enter the apartment.

16. Once the police entered the apartment, plaintiff was not free to disregard the police's questions, walk away or leave the scene.

17. Plaintiff was in his bedroom about to go to sleep.

18. Plaintiff's girlfriend was also present in his bedroom.

19. The police knocked on plaintiff's bedroom door.

20. Plaintiff answered his bedroom door, telling the police he was not dressed.

21. The police did not say why they were there.

22. The police kicked in plaintiff's bedroom door.

23. The police grabbed plaintiff's arms and pulled him out his bedroom into the hallway and bathroom.

24. The police forced plaintiff to the ground.

25. The police twisted plaintiff's arms.

26. The police placed plaintiff in excessively tight handcuffs.

27. The police struck plaintiff while he was handcuffed, including his head, mouth, arms, back, and side.

28. The police sprayed plaintiff with pepper spray while he was handcuffed.

29. The police kept their knees in plaintiff's back.

30. Plaintiff complained about the handcuffs and the police's conduct.
31. The police were abusive and rude.
32. The police had no lawful basis to arrest plaintiff.
33. Plaintiff suffered physical injuries, including bleeding, contusions, lacerations, pain, and chipped teeth.
34. Emergency Medical Services responded to the apartment and transported plaintiff to Jamaica Hospital Medical Center.
35. Medical personnel treated plaintiff's injuries.
36. The police then transported plaintiff to the 113th precinct for arrest processing.
37. The police transported plaintiff to Queens Central Booking for arraignment.
38. Plaintiff was detained at Central Booking.
39. Upon information and belief, in order to cover up their illegal actions, the police, pursuant to a conspiracy, initiated by false sworn complaint(s) and/or conversations, falsely and maliciously told the Queens County District Attorney's Office that plaintiff had committed various crimes, and the District Attorney prosecuted plaintiff for various charges, including resisting arrest and assault.
40. Plaintiff was released at arraignment on his own recognizance.
41. All criminal charges against plaintiff were dismissed on February 22, 2016, and the criminal case against plaintiff terminated in plaintiff's favor.
42. Plaintiff was humiliated and embarrassed by the experience.
43. Plaintiff suffered a post arraignment restraint on his liberty.

44. Plaintiff suffered financial loss.

45. Plaintiff received medical treatment for his physical injuries.

General Allegations

46. Plaintiff did not resist arrest at any time during the above-described incidents.

47. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

48. The individual defendants did not observe plaintiff violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

49. The individual defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

50. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

51. Plaintiff are entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff' rights.

FIRST CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)

52. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

53. Defendants unlawfully entered plaintiff's premises without a lawful warrant, cause, consent, and/or beyond the scope of any warrant.

54. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER STATE LAW)

55. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

56. Defendants unlawfully entered plaintiff's premises without a lawful warrant, cause, consent, and/or beyond the scope of any warrant.

57. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under New York State law.

THIRD CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

58. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

59. Defendants falsely arrested plaintiff without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

60. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FOURTH CLAIM

(FALSE ARREST UNDER STATE LAW)

61. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

62. Defendants falsely arrested plaintiff without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

63. Accordingly, defendants are liable to plaintiff for false arrest under New York State law.

FIFTH CLAIM

(UNREASONABLE FORCE)

64. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

65. The individual defendants' use of force upon plaintiff was objectively unreasonable.

66. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff.

67. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

68. Accordingly, the defendants are liable to plaintiff for using unreasonable force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

SIXTH CLAIM

(ASSAULT)

69. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

70. Among other things as described above, individual defendants' battery, false arrest, and unreasonable use of force against plaintiff placed him in fear of imminent harmful and offensive physical contacts.

71. Accordingly, defendants are liable to plaintiff under New York State law for assault.

EIGHTH CLAIM

(BATTERY)

72. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

73. Among other things as described above, the individual defendants' false arrest, and unreasonable use of force against plaintiff were illegal physical contacts.

74. Accordingly, defendants are liable to plaintiff under New York State law for battery.

NINTH CLAIM

(FAILURE TO INTERVENE)

75. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

76. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

77. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

TENTH CLAIM

(CONSPIRACY)

78. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

79. Defendants are liable to plaintiff because they agreed to act in concert to inflict an unconstitutional injury; and committed an overt act done in furtherance of that goal causing damage to plaintiff under 42 U.S.C. § 1983.

ELEVENTH CLAIM

(MALICIOUS PROSECUTION FEDERAL LAW)

80. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

81. The individual defendants are liable to plaintiff for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution(s) against plaintiff by knowingly, intentionally, and maliciously providing false statements in complaints and police reports to police officers, prosecutors and/or the court(s), which alleged plaintiff had committed various crimes.

82. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

83. The individual defendants initiated the above-stated malicious prosecution to cover up their illegal and unconstitutional conduct.

84. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiff.

TWELFTH CLAIM

(MALICIOUS PROSECUTION STATE LAW)

85. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

86. The individual defendants are liable to plaintiff for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution(s) against plaintiff by knowingly, intentionally, and maliciously providing false statements in complaints and police reports to police officers, prosecutors and/or the court(s), which alleged plaintiff had committed various crimes.

87. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

88. The individual defendants initiated the above-stated malicious prosecution to cover up their illegal and unconstitutional conduct.

THIRTEENTH CLAIM

(DENIAL OF A FAIR TRIAL/FABRICATION OF EVIDENCE)

89. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

90. The individual defendants are liable to plaintiff because they intentionally conspired to fabricate evidence against plaintiff, including omitting and/or manipulating evidence, and suppressing exculpatory evidence and forwarded that false evidence to police officers, prosecutors, and the court.

91. The individual defendants violated the law by either testifying falsely, providing false information, and/or drafting and signing false criminal court complaints and/or false police reports and forwarding them to police officers, prosecutors and the court.

92. The individual defendants were on notice that creating fabricated evidence is a clear violation of law because it is well established that individuals who knowingly use false evidence to obtain a conviction act unconstitutionally, depriving plaintiff of liberty without due process of law or a fair trial, and the harm occasioned by such unconscionable actions are redressable in an action for damages under 42 U.S.C. § 1983, the Fair Trial Clause of the Sixth Amendment to the United States Constitution, and the Due Process Clause of the Fourteenth Amendment to the United States Constitution.

FOURTEENTH CLAIM

(MONELL CLAIM)

93. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

94. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

95. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiff: (1) wrongfully arresting innocent persons in order to meet productivity goals; (2) using unreasonable force on individuals; and (3) unlawfully entering people's homes.

96. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

97. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

98. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

99. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

FIFTEENTH CLAIM
(RESPONDEAT SUPERIOR)

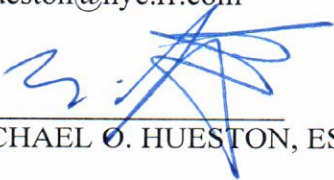
100. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

101. The individual defendants were acting within the scope of their employment when they committed the above described acts against plaintiff, including falsely arresting, assaulting, and battering plaintiff.

102. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants; and demands judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988.

DATED: Brooklyn, New York
December 14, 2016

MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiff
16 Court Street, Suite 3301
Brooklyn, New York 11241
(718) 246-2900
mhueston@nyc.rr.com
By: 

MICHAEL O. HUESTON, ESQ.

RICHARD H. ROSENBERG, ESQ.
217 Broadway, Suite 707
New York NY 10007
(212) 586-3838
richrosenberg@msn.com

VERIFICATION

I, Terrell Coleman, state under the oath, that I am the deponent in this action, and that I have read the Verified Complaint and that it is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.



Terrell Coleman

STATE OF NEW YORK)

: ss:

COUNTY OF KINGS)

On the 14th day of December, 2016, before me personally came and appeared TERRELL COLEMAN to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.



NOTARY PUBLIC

MICHAEL HUESTON
NOTARY PUBLIC, State of New York
No. 02HU5073503
Qualified in Kings County
Commission Expires April 22, 2018 18

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

TERRELL COLEMAN,

Plaintiff,

-against-

CITY OF NEW YORK, et al.,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

MICHAEL O. HUESTON, ESQ.

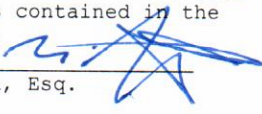
Attorney for Plaintiff

16 Court St., Suite 3301

Brooklyn, New York 11241

(718) 246-2900

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney duly admitted to practice law in the State of New York, certifies that, upon information and belief based upon reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 12/14/2016 Signature: 

Michael O. Hueston, Esq.

Due and timely, service is hereby
admitted.

Brooklyn, New York....., 2016

....., Esq.

Attorney for.....